

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #14	CCRB Case #: 201606548	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/30/2016 3:37 PM	Location of Incident: Rear of 1285 Washington Avenue	18 Mo. SOL 1/30/2018	Precinct: 42		
Date/Time CV Reported Sat, 07/30/2016 10:22 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 07/30/2016 10:22 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jimmy Perez	08269	941242	PSA 7
2. SGT Edwin Reyes	01641	939296	PSA 7

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. CPT Julie Morrill	00000	927231	PSA 8
2. DTS Angel Irizarry	5466	932104	PSA 7

Officer(s)	Allegation	Investigator Recommendation
A . SGT Edwin Reyes	Force: Sergeant Edwin Reyes used physical force against § 87(2)(b)	A . Exonerated
B . POM Jimmy Perez	Force: Police Officer Jimmy Perez used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Jimmy Perez	Abuse: Police Officer Jimmy Perez refused to provide his shield number to § 87(2)(b)	C . Unsubstantiated
D . POM Jimmy Perez	Discourtesy: Police Officer Jimmy Perez spoke discourteously to § 87(2)(b)	D . Unfounded

Case Summary

On July 30, 2016, § 87(2)(b) filed the following complaint on the CCRB's website. On July 31, 2016, IAB internally created a complaint, generating original log number 2016-27076, which the CCRB received on August 3, 2016.

On July 30, 2016, at approximately 3:34 p.m., § 87(2)(b) was helping to prepare food at the annual Family Day event at the Morrisania Houses NYCHA development in the Bronx. § 87(2)(b) got into a dispute with a mother and daughter, § 87(2)(b) and § 87(2)(b) which led to the § 87(2)(b) physically attacking § 87(2)(b) husband, § 87(2)(b) helped to break up the fight, along with his friend § 87(2)(b). Officers on scene apprehended § 87(2)(b). An unidentified officer on scene requested backup multiple times, and numerous officers responded to the scene. Among the responding officers were Police Officer Jimmy Perez, Sergeant Edwin Reyes, and Detective Angel Irizarry of PSA7. Captain Julie Morrill, who was acting Commanding Officer of Housing Bureau Bronx/Queens at the time, also responded to the calls for backup.

As Police Officer Elizabeth Allain and Police Officer Stacy Skamangas, both of PSA7, spoke to § 87(2)(b) § 87(2)(b) attempted to intervene to stop them from eliciting a statement from her. Sgt. Reyes grabbed § 87(2)(b) from behind to restrain him (**Allegation A**).

§ 87(2)(b) saw Sgt. Reyes grab § 87(2)(b) and moved toward the struggle. PO Perez saw § 87(2)(b) approaching Sgt. Reyes, grabbed him from behind, and moved him to a nearby fence (**Allegation B**). Capt. Morrill identified § 87(2)(b) to PO Perez and PO Perez released him. § 87(2)(b) asked PO Perez for his shield number and PO Perez allegedly did not respond (**Allegation C**). PO Perez allegedly told § 87(2)(b) to "shut the fuck up" (**Allegation D**). § 87(2)(b) spoke to Capt. Morrill and Det. Irizarry before later meeting with PO Perez. PO Perez apologized to § 87(2)(b) but also told him that he felt his actions were justified and that he would act in the same manner in the future.

§ 87(2)(b) was transported to the PSA7 stationhouse and was issued a summons for § 87(2)(b) (BR01).

The investigation was unable to obtain any video footage depicting the pertinent portions of the incident. § 87(2)(b)'s intern, § 87(2)(b) provided three short, silent video clips depicting the immediate aftermath of the incident (BR02--BR04).

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined the option of mediation.
- On § 87(2)(b), § 87(2)(b) filed a Notice of Claim with the NYC Comptroller, in which he claimed to have suffered physical and psychological injuries, deprivation of freedom, and impairment of employment, as a result of false arrest and imprisonment, assault and battery, and excessive force. He sought \$250,000 in damages (BR). A 50-h hearing has been tentatively scheduled for § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]
[redacted]
[redacted]
[redacted]
[redacted]
[redacted]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving [§ 87(2)(b)] and [§ 87(2)(b)] (BR07; BR08).
- PO Jimmy Perez has been a member of the NYPD for ten years and has had six previous CCRB allegations involving four cases, including four previous force allegations, none of which was substantiated (see officer history).
- Sgt. Edwin Reyes has been a member of the NYPD for 11 years and has had seven previous CCRB allegations involving three cases, including two previous force allegations, none of which was substantiated (see officer history).

Findings and Recommendations

Allegations Not Pleaded

- [§ 87(2)(g)]
[redacted]
[redacted]
[redacted]
[redacted]
- **Allegation A—Force: Sergeant Edwin Reyes used physical force against [§ 87(2)(b)]**
[§ 87(2)(g)]
It is undisputed that Sgt. Reyes grabbed [§ 87(2)(b)] from behind and held him briefly. In his video conference interview and a later phone statement, [§ 87(2)(b)] recounted that he sought out the officers who had apprehended [§ 87(2)(b)] because he did not want them to arrest her (BR09; BR10). He felt that the incident was simply a “miscommunication” as all the individuals involved were “kind of family.” After speaking to the officers who were holding [§ 87(2)(b)] [§ 87(2)(b)] saw that PO Allain and PO Skamangas were holding [§ 87(2)(b)] and asking her if she wanted to press charges against [§ 87(2)(b)] [§ 87(2)(b)] approached them in order to make it clear that [§ 87(2)(b)] did not want to press charges. He admitted that he was “trying to intervene.” He told one of the officers, “No, nothing is wrong. Nobody want [sic] to press charges,” “No, she don’t want to press charges,” and “Let her go. Everything is alright.” The officer instructed [§ 87(2)(b)] to “back off” and to “get out of here,” before she pushed [§ 87(2)(b)] away. [§ 87(2)(b)] denied that he ever pushed any officer. Sgt. Reyes immediately grabbed [§ 87(2)(b)] from behind and held his arms above his head in a maneuver similar to a “full nelson.” [§ 87(2)(b)] told Sgt. Reyes that [§ 87(2)(b)] was his wife, and Sgt. Reyes soon released him.

§ 87(2)(b) recounted that PO Allain and PO Skamangas asked her if she was okay, and she told them that § 87(2)(b) hit her (BR11). They wanted to take her to the stationhouse and to have her receive medical attention but she refused. § 87(2)(b) described herself as “confused.” § 87(2)(b) stood beside her and told the officers that § 87(2)(b) was not going anywhere. § 87(2)(b) explained to the investigator that § 87(2)(b) does not like police officers. § 87(2)(b) confirmed that officers began grabbing § 87(2)(b) but did not explain what prompted them to do so and could not describe how they held § 87(2)(b). She confirmed, however, that the officers were attempting to separate him from her.

§ 87(2)(b) recounted that he and other individuals were attempting to convince the officers to release § 87(2)(b) as they felt the incident did not require police intervention (BR12). Officers wanted to pull § 87(2)(b) aside in order to convince her to press charges against § 87(2)(b). § 87(2)(b) told the officers that she did not want to press charges, and § 87(2)(b) told the officers that § 87(2)(b) did not want to provide a statement. § 87(2)(b) alleged that officers grabbed § 87(2)(b) twice. On the first occasion, they released him after learning he was § 87(2)(b) wife. However, additional officers who arrived later grabbed § 87(2)(b) when he again tried to approach § 87(2)(b) to speak to her.

In his phone statement and in-person CCRB interview, § 87(2)(b) recounted that he only became aware of § 87(2)(b) once Sgt. Reyes had already grabbed him (BR13; BR14). Sgt. Reyes appeared to be holding § 87(2)(b)'s arms behind his back. A female officer stood in front of § 87(2)(b). § 87(2)(b) was yelling and appeared to be trying to explain something.

Sgt. Reyes recounted that he saw § 87(2)(b) run toward § 87(2)(b) PO Allain, and PO Skamangas (BR15). § 87(2)(b) pushed the officers aside and appeared to try to grab § 87(2)(b). Sgt. Reyes believed this act constituted obstruction of governmental administration. Either PO Allain or PO Skamangas put her hand on § 87(2)(b)'s chest. Sgt. Reyes ran to § 87(2)(b) grabbed him from behind in a bear-hug, and held his arms against his sides. § 87(2)(b) screamed, “That’s my wife! That’s my wife!” § 87(2)(b) also said that he did not want § 87(2)(b) to speak to officers and that he did not want her to press charges. Sgt. Reyes only held § 87(2)(b) momentarily, and he released him when § 87(2)(b) told officers that he was her husband.

PO Perez was not aware of § 87(2)(b) until he heard Sgt. Reyes raise his voice and turned to see that Sgt. Reyes already had § 87(2)(b) in a bear-hug (BR16). PO Perez recounted that Sgt. Reyes, PO Allain, and PO Skamangas later told him that § 87(2)(b) had stepped in between officers and pushed them aside before squeezing § 87(2)(b) face and saying, “I don’t want you talking to the cops.”

Capt. Morrill recounted that § 87(2)(b) told her and others on scene, “There is nothing going on here. There’s no victim. There’s no problem” (BR17). She directed his attention to § 87(2)(b) whom she believed was a victim and who was standing with PO Allain and PO Skamangas. § 87(2)(b) said, “That’s my wife,” and ran toward § 87(2)(b). Capt. Morrill could not recall if § 87(2)(b) touched PO Allain or PO Skamangas when he ran past them. He clapped his hand over § 87(2)(b) mouth, and § 87(2)(b) grabbed his collar.

Det. Irizarry recounted seeing § 87(2)(b) and § 87(2)(b) yelling at each other and tugging at each other’s shirts (BR18). Sgt. Reyes came behind § 87(2)(b) and held him by his biceps.

§ 87(2)(g)

A person is guilty of obstructing governmental administration when he prevents or attempts to prevent a public servant from performing an official function by means of intimidation, physical force, or interference. N.Y. Penal Law §195.05 (BR19). An officer may use force when it is reasonable to ensure the safety of a member of the service or of a third person, and when it is reasonable to place a person in custody. In all circumstances, any application or use of force must be reasonable under the circumstances. Patrol Guide Procedure 221-01 (BR20).

§ 87(2)(g)

§ 87(2)(g)

Therefore it is recommended that **Allegation A** be closed as **exonerated**.

- **Allegation B—Force: Police Officer Jimmy Perez used physical force against** § 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

It is undisputed that PO Perez grabbed § 87(2)(b) from behind in a bear-hug, moved him a short distance, and held him against a fence.

In his initial online complaint, § 87(2)(b) recounted that he heard § 87(2)(b) yelling and saw that he was being “separated” from officers in “an aggressive and physical manner” (BR21). § 87(2)(b) then “ran towards [the officers] to ask what was happening and to deescalate the situation.” In his in-person CCRB interview, § 87(2)(b) recounted that he heard “a discussion of some sort” occurring behind him, and he turned to see § 87(2)(b) § 87(2)(b) PO Perez, Sgt. Reyes, and another officer approximately 15 feet away (BR22). He was not certain exactly what was happening. § 87(2)(b) and § 87(2)(b) were “separating themselves in some form or fashion” as the officers stood around them. § 87(2)(b) and § 87(2)(b) were not yelling or making physical contact with each other. § 87(2)(b) thought he recalled one of the officers “trying to separate” § 87(2)(b) and § 87(2)(b) but denied that any officer appeared to be using force.

§ 87(2)(b) said he approached § 87(2)(b) and the officers at a “swift walk.” He approached simply to figure out what was happening. He initially did not recall, and later explicitly denied, making any statements as he approached. He also denied that he was “doing anything physically” while approaching the officers, and denied that he made contact with any officer. When later asked if he ever grabbed or touched an officer’s shoulder, § 87(2)(b) said, “I, for one, don’t recall that happening, nor do I think it occurred.”

§ 87(2)(b) said PO Perez grabbed him from behind in a bear-hug as he approached the scene, and quickly brought him to a fence approximately ten feet away. PO Perez briefly lifted § 87(2)(b) off the ground when he moved him. § 87(2)(b)’s left side briefly made contact with the fence before PO Perez pivoted so that PO Perez’s back was against the fence and § 87(2)(b) was not touching it. PO Perez released § 87(2)(b) within seconds once Det. Irizarry and Capt. Morrill arrived. The entire interaction lasted

approximately 10-15 seconds. No officer said anything to § 87(2)(b) when he began approaching the group or as he was being grabbed.

§ 87(2)(b)

However, in some instances he added that he also approached in order to calm the situation, and once said, “I ran over to calm the situation down” (BR23-BR25).

§ 87(2)(b) specified that § 87(2)(b) walked toward the scene and did not run, and that while approaching he said something to the effect of, “Why is he being arrested if he’s just explaining something?” § 87(2)(b) denied that § 87(2)(b) reached out while approaching and said that his arms were down at his sides at the time. PO Perez grabbed § 87(2)(b) when he was approximately two feet away from the group of officers. § 87(2)(b) explicitly denied that § 87(2)(b) touched any officer before being grabbed.

§ 87(2)(b) recounted that he saw § 87(2)(b) coming towards him as Sgt. Reyes held him from behind. § 87(2)(b) said both that § 87(2)(b) was “walking fast” and “running.” § 87(2)(b) was saying, “What’s going on? What’s going on?” as he approached. He was not yelling. § 87(2)(b) made no movements with his arms as he approached and did not touch any officers before he was grabbed. § 87(2)(b) insisted that multiple officers grabbed § 87(2)(b) when he was five to seven feet away, but added that he “couldn’t see too much” at that point.

§ 87(2)(b) recounted that § 87(2)(b) said, “No, no, no, no, hold on, hold on,” as he approached the scene. He was not yelling. He was holding his hands up in front of his chest. § 87(2)(b) denied that § 87(2)(b) touched any officers before being grabbed. Although § 87(2)(b) insisted that the incident occurred directly in front of her, she said she did not know if officers brought § 87(2)(b) to the ground.

§ 87(2)(b) recounted that § 87(2)(b) reacted to officers grabbing § 87(2)(b) by saying, “Hold on. Hold on. What’s going on?” and “Why? What are y’all doing? Why y’all doing that?” He denied that § 87(2)(b) touched any officers. He said § 87(2)(b) was stationary, standing approximately “a couple feet” in front of him at the time he was grabbed.

PO Perez recounted that he was approximately 10-15 feet from Sgt. Reyes when he first became aware that Sgt. Reyes had grabbed § 87(2)(b). He began walking toward Sgt. Reyes to assist him in handcuffing § 87(2)(b). In his initial narrative of the incident, PO Perez recounted, “From my right, I hear, all of a sudden: “No! No! No!” Screaming. Very angry. In a very angry tone. Walking towards my sergeant. Basically turns into like a slow jog. He’s going towards my sergeant now. He has his hands up, trying to grab my sergeant, basically.”

§ 87(2)(b) had both hands raised to chest or head height, and gestured, shook, or pointed at least one of his hands. PO Perez described § 87(2)(b) gestures as “like speaking with his hands,” and described his pace as a “fast walk” or a “slow run.”

PO Perez suspected § 87(2)(b) was attempting to interfere with Sgt. Reyes’s arrest and grab Sgt. Reyes because § 87(2)(b) was approaching with his hands raised while “screaming.” PO Perez ran toward § 87(2)(b) to intercept him, and grabbed him when he was within arm’s reach of Sgt. Reyes. He held § 87(2)(b) arms against his sides in a bear-hug such that he was face-to-face with him. PO Perez did not know if § 87(2)(b) actually made physical contact with Sgt. Reyes. He did not issue any commands to § 87(2)(b) before grabbing him because § 87(2)(b) was “within arm’s reach” and therefore

posed a threat to Sgt. Reyes. PO Perez pushed § 87(2)(b) toward the fence and held him there with minimal force. He did not know if he lifted him off the ground at any point, but denied carrying him to the fence.

PO Perez brought § 87(2)(b) to the fence because he considered § 87(2)(b) under arrest and wanted to prevent him from escaping before he could be handcuffed. PO Perez believed that § 87(2)(b) had committed disorderly conduct and possibly obstruction of governmental administration. When asked to delineate the actions taken by § 87(2)(b) which constituted those crimes, PO Perez said that § 87(2)(b) was “interfering with an arrest” because he was belligerent, screaming, and holding his hands in the air while approaching the scene, and because he was got within “arm’s distance” in order to “put his hands on” an officer. PO Perez specified that § 87(2)(b)’s actions may not have constituted OGA because “OGA is when you actually physically touch somebody,” but he explained that § 87(2)(b) was “in the act of committing OGA.” He also specified that § 87(2)(b) violated the first subsection of the disorderly conduct statute, which regards “violent, threatening, or tumultuous behavior.”

Sgt. Reyes recounted that, immediately after grabbing § 87(2)(b) he heard § 87(2)(b) screaming, “No! No! No!” He then felt “some type of contact” on his left shoulder. At his CCRB interview, Sgt. Reyes demonstrated what he felt by placing his open palm on his left shoulder. He confirmed that he was not “grabbed.” However, at one point he also said that he did not know “what part of the body” touched his shoulder. He turned to see PO Perez holding § 87(2)(b) against the fence.

Capt. Morrill recounted that she ran after § 87(2)(b) when he suddenly ran toward § 87(2)(b). § 87(2)(b) also began running after § 87(2)(b) and shouted, “No! No! No!” Capt. Morrill reached § 87(2)(b) first. She believed that Sgt. Reyes was behind her at the time, and she could “partially” see § 87(2)(b) to her left, but she “lost track of them” at that point and did not see PO Perez grab § 87(2)(b). She said § 87(2)(b) was “absolutely” within arm’s reach of Sgt. Reyes. § 87(2)(g)

She initially said she could not recall if § 87(2)(b)’s hands were raised or outstretched, but later said that he was “reaching out” when he approached.

Capt. Morrill spoke to § 87(2)(b) immediately after the incident. In her initial account of the incident, she said that § 87(2)(b) acknowledged by his “own admission” that he had attempted to stop Sgt. Reyes from separating § 87(2)(b) and § 87(2)(b). She later explained that she understood that § 87(2)(b) intended to stop Sgt. Reyes from stopping § 87(2)(b) because he knew that § 87(2)(b) and § 87(2)(b) were married. She explicitly stated that § 87(2)(b) told her during this conversation that he could not recall if he actually made contact with Sgt. Reyes, and quoted him as saying, “I don’t know if I got my hand on him or not.” She also spoke to Sgt. Reyes and PO Perez, both of whom said they did not know if § 87(2)(b) had actually touched Sgt. Reyes.

Capt. Morrill believed that § 87(2)(b) could have been arrested for OGA because he “attempted to intervene in police action.” His actions constituted OGA even if he did not actually touch Sgt. Reyes, as OGA “doesn’t require physical touch,” and merely requires “intervention in a way that stops government administration from occurring.” Nonetheless, Capt. Morrill decided not to arrest § 87(2)(b) because she understood that his intention was to try to “mediate” between officers and civilians.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED] Therefore it is recommended that **Allegation B** be closed as **unsubstantiated**.

- **Allegation C—Abuse of Authority: Police Officer Jimmy Perez refused to provide his shield number to** § 87(2)(b)

In his initial online complaint, § 87(2)(b) recounted that he “demanded” PO Perez’s shield number after Capt. Morrill and Det. Irizarry directed PO Perez to release him (BR21). He did not indicate whether PO Perez provided his shield number, but did correctly note PO Perez’s shield number elsewhere in the complaint. During his CCRB interview, § 87(2)(b) recounted that, immediately upon being released, he asked PO Perez, “Why did you put your hands on me? And I would like your badge number.” § 87(2)(b) was able to read PO Perez’s shield number at that time, but PO Perez did not state his shield number to § 87(2)(b). § 87(2)(b) denied that PO Perez ever provided his shield number during the remainder of the incident.

§ 87(2)(b) denied that § 87(2)(b) asked PO Perez directly for his name or shield number, and said that § 87(2)(b) asked Capt. Morrill and Det. Irizarry for PO Perez’s identifying information once they approached him at the fence. PO Perez had already been escorted away from § 87(2)(b) at this time. § 87(2)(b) could not recall if he ever heard § 87(2)(b) ask PO Perez for his name or shield number. The investigation did not question § 87(2)(b) or § 87(2)(b) regarding this allegation.

PO Perez denied that § 87(2)(b) ever requested his shield number during the incident. He said that Capt. Morrill and Det. Irizarry later told him that they had provided his name and shield number to § 87(2)(b) upon his request.

Capt. Morrill, Sgt. Reyes, and Det. Irizarry all denied that they ever heard § 87(2)(b) ask PO Perez for his shield number. Det. Irizarry recounted that § 87(2)(b) asked him for PO Perez’s name and shield number when he first approached him at the fence, and that Sgt. Reyes was already leading PO Perez away from the scene at that time.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Therefore it is recommended that **Allegation C** be closed as **unsubstantiated**.

- **Allegation D—Discourtesy: Police Officer Jimmy Perez spoke discourteously to** § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) alleged that PO Perez yelled, “Shut the fuck up!” at § 87(2)(b) shortly after releasing him beside the fence. § 87(2)(b) did not allege that PO Perez used any profanity when speaking to him, and none of the other civilian witnesses corroborated § 87(2)(b)'s allegation. PO Perez denied making the alleged statement, and the other officers denied hearing him make it. § 87(2)(g)

Therefore it is recommended that **Allegation D** be closed as **unfounded**.

Squad: 14

Investigator: _____ Daniel Giansante _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date